



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Mark Christensen, Planner II
Subject: UDC-22-00030 / 1720 Cleveland Avenue Zoning Map Amendment
Date: February 28, 2022

Background:

The item for consideration is a **Zoning Map Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and First Reading 02/28/2022
- Public Services Committee 03/08/2022
- Second Reading 03/14/2022
- Public Services Committee 03/22/2022
- Third and Final Reading 03/28/2022

Related Items:

- Comprehensive Plan Amendment (PLN-22-00002)

Planning Commission Recommendation:

The Planning Commission heard this item at their February 22, 2022 meeting and **unanimously** recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report
3. Zoning Map Amendment Map

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM P PUBLIC DISTRICT TO CB COMMUNITY BUSINESS FOR LAND LOCATED SOUTHWEST OF AND ADJACENT TO THE INTERSECTION OF CLEVELAND AVENUE AND U.S. 30.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on February 22, 2021, the City of Cheyenne Planning Commission conducted a public hearing to review the proposed zone change that is the subject of this ordinance.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1, Block 1, Wynn Addition, Cheyenne, Laramie County, Wyoming is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION

FEBRUARY 22, 2022

STAFF REPORT

FILE: UDC-22-00030: 1720 Cleveland Ave. Zone Change

REQUEST: A request to rezone approximately 2.18 Acres of land from P Public to CB Community Business

LOCATION: South and east of Lincolnway, south and west of Cleveland Avenue

OWNER: City of Cheyenne

ZONING: P Public

FUTURE LAND USE: Open Space (but proposed to be Mixed-use Commercial)

PURPOSE: To allow redevelopment of a commercial property

PREPARED BY: Mark Christensen, AICP, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lot 1, Block 1, Wynn Addition to CB Community Business as shown in the attached zone change map, noting that the project meets the review criteria for approval, with the following condition:

1. The Future Land Use Map for the area be amended to Mixed-use Commercial prior to (or concurrently with) the zone change application.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from P Public to CB Community Business for City-owned property. The land is developed with a fire station, which is proposed to be relocated. The purpose of the proposed zone change is to allow for future commercial redevelopment of the City-owned property once the fire station is relocated.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Open Space (Proposed to become Mixed-use Commercial)	P (Public)	Fire Station
North	Mixed-use Commercial	CB (Community Business)	Financial Institution
South	Urban Residential	MR (Medium Density Residential)	Single-family Residential
East	Urban Residential and Open Space	MR	Single-family Residential and Open Space
West	Mixed-use Commercial and Open Space	MUB (Mixed-Use Business Emphasis)	Commerical

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure. PlanCheyenne also encourages infill development.

The Future Land Use designation for this property is currently Public; however, it is anticipated that the designation for this area of the community will be changed to Mixed-use Commercial (MU-C). The MU-C designation recognizes that the location will likely redevelop by private enterprise once the fire station is relocated. Furthermore, the MU-C designation matches the Future Land Use designations to the north and west.

Based on the policies and proposed future land use designation of the subject property, Community Business zoning is appropriate at this location. Community Business is an acceptable zone within the MU-C Future Land Use designation as it fulfills the commercial component of the designation,

The proposed zone change **complies** with review criterion 1, with conditions.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

Several of the surrounding properties to the north are zoned Community Business and are developed with commercial uses. Furthermore, the properties to the west that are zoned Mixed-use Business Emphasis and are also developed with commercial uses. The surrounding properties to the north and west carry a Mixed-Use Commercial Emphasis which anticipates predominantly commercial development. Lastly, the location adjacent to E. Lincolnway further reinforces the suitability of the site for commercial uses.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The Public zone is crafted for use by public entities, such as the City of Cheyenne. With the planned relocation of the fire station, it is anticipated the City will dispose of the subject property to a private entity for commercial development. The Community Business zone will afford the future developer a variety of opportunities for redevelopment compared to the current Public zone.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

Community Business zoning typically anticipates larger suburban-style blocks, consistent with the current site at 2.18 acres. The existing pattern is compatible with the proposed zoning and staff is comfortable that the subject property will meet the requirements of Article 4 should future redevelopment require a subdivision process.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The Intent of the Community Business district is for retail, employment, service, and civic uses that may serve a variety neighborhoods. The Applicability of the district states that the CB district is appropriate in areas with moderate- or large-scale businesses can be anticipated. The location of the subject property along a major arterial, E. Lincolnway, and size of the lot, 2.18 acres, yield conditions conducive to moderate-scale commercial businesses that will serve the surrounding neighborhood.

The Community Business zone is required to meet the Large Scale Commercial Design Standards of 6.8. Staff is confident that the future development of the subject property will be able to meet these requirements.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The existing property has adequate area and site conditions to meet the standards of the Community Business district. There are no current applications for development of the subject property and staff is satisfied that the various uses permitted in the CB district will be able to meet the applicable standards at the subject property.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

Staff presented the zoning map amendment to the Project Advisory Team on Thursday February 10. No comments were received.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The CB zone is appropriate based on the proposed future land use designation for the subject property and surrounding development patterns.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant.
2. Recommend approval of the zoning amendment subject to conditions or modifications (**Staff Recommendation**).
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

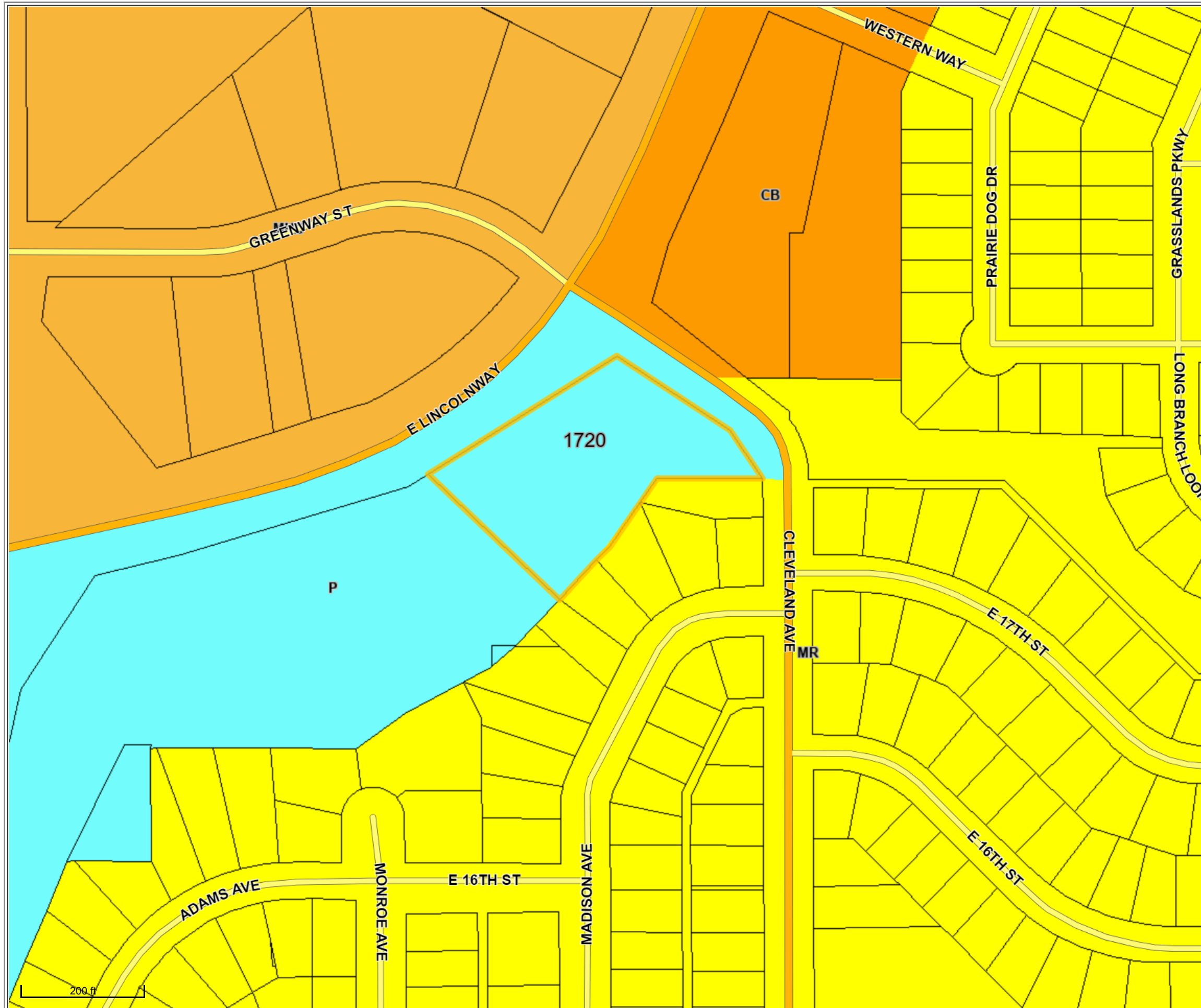
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from P to CB, contingent on the proposed future land use map amendment for the subject property to Mixed-use Commercial emphasis.

ATTACHMENTS:

1. Current Zoning Map
2. (Current) Future Land Use Map
3. Zone Change Map



Laramie County Wyoming MapServer

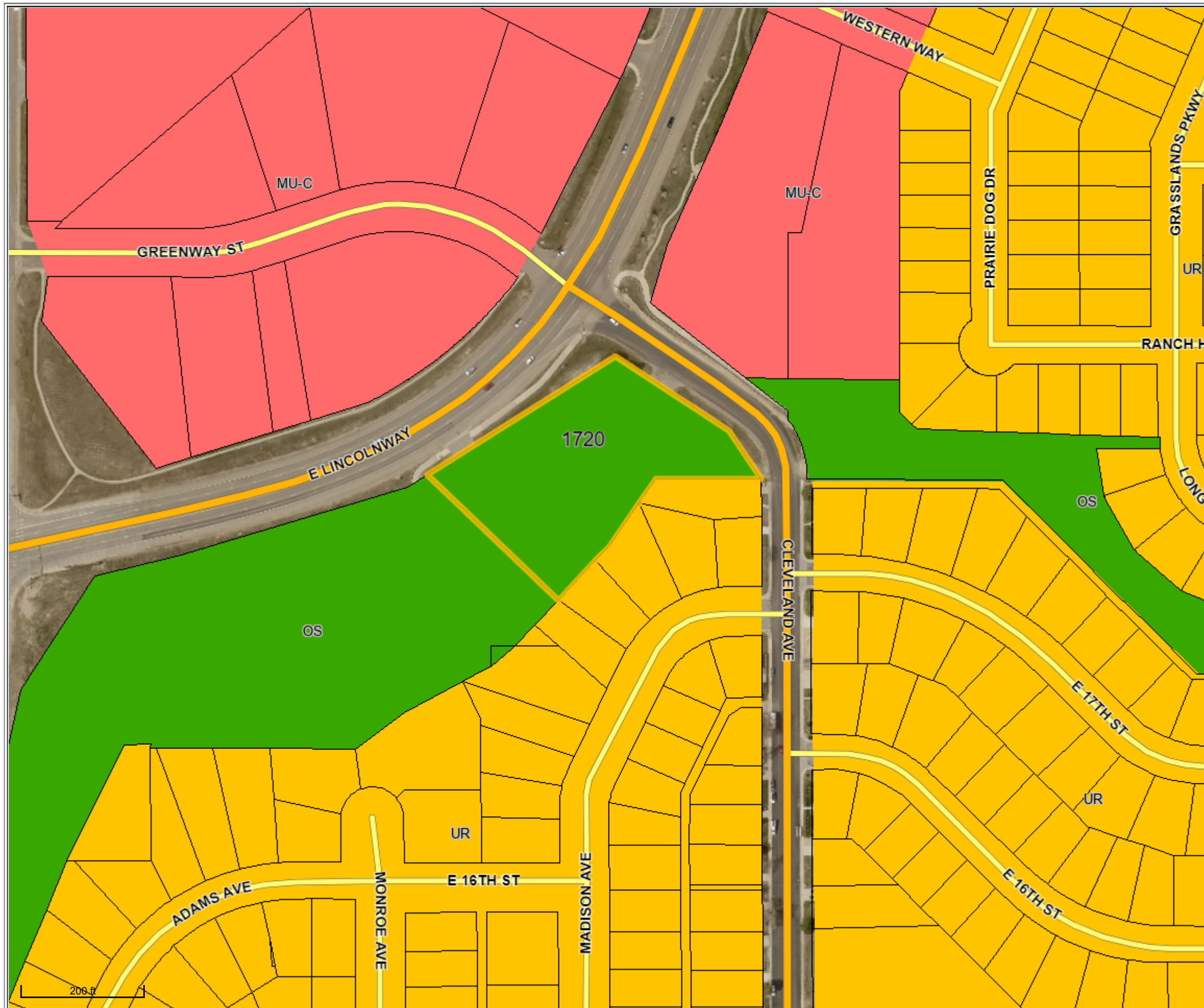
Current Zoning

- HR
- MR
- LR
- NR-2
- NR-3
- AR
- A-1
- A-2
- AG
- MUR
- CBD
- CB
- NB
- MU
- MUB
- MUE
- HI
- LI
- P
- AD
- PUD
- X



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printed 2/15/2022



Laramie County Wyoming MapServer

Current Future Land Use Map

- Agricultural/Rural
- Rural Residential
- Urban Transition Residential
- Urban Residential
- Mixed-Use Residential
- Mixed-Use Commercial
- Mixed-Use Employment
- Industrial
- Central Business District
- Community Business
- Public and Quasi-Public
- Military/Federal
- Open Space and Parks



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printed 2/15/2022



City of Cheyenne Zoning Map Amendment



Information:

Address
1720 Cleveland Avenue
Cheyenne WY 82001

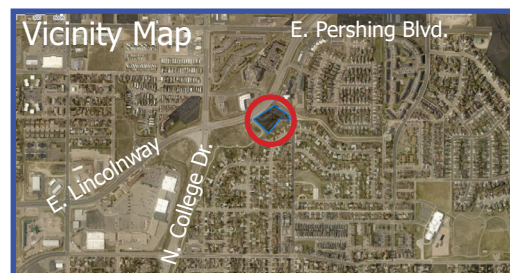
Legal Description
Lot 1 Block 1 Wynn Addition

Current Zone
P (Public)

Proposed Zone
CB (Community Business)

Site Area
2.18 Acres

Scale
1:60



Produced by the City of Cheyenne Planning and Development Department on February 14, 2022. This is a City-initiated Zoning Map Amendment. This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program